

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: [REDACTED]	Team: APU	CCRB Case #: 201609960	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sat, 11/26/2016 5:30 PM	Location of Incident: 1301 Inwood Avenue	Precinct: 44	S.O.L. Expires: 05/26/2018
Date/Time CV Reported Sun, 11/27/2016 5:24 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 12/02/2016 12:42 PM

Complainant/Victim	Type	Home Address
1. [REDACTED]	Comp/Victim	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. [REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
2. POM Rafael Morales	14062	[REDACTED]	044 PCT

Officer(s)	Allegation	Investigator Recommendation
[REDACTED]	[REDACTED]	[REDACTED]
B . POM Rafael Morales	Abuse of Authority: In front of 1301 Inwood Avenue in the Bronx, Police Officer Rafael Morales stopped [REDACTED]	B . Substantiated
C . POM Rafael Morales	Abuse of Authority: In front of 1301 Inwood Avenue in the Bronx, Police Officer Rafael Morales frisked [REDACTED]	C . Substantiated
D . POM Rafael Morales	Abuse of Authority: In front of 1301 Inwood Avenue in the Bronx, Police Officer Rafael Morales searched [REDACTED]	D . Substantiated
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
H . POM Rafael Morales	Other: Police Officer Rafael Morales failed to prepare a memo book entry as required.	H . Other Misconduct
[REDACTED]	[REDACTED]	[REDACTED]
J . POM Rafael Morales	Other: Rafael Morales failed to prepare a stop and frisk report as required.	J . Other Misconduct

Case Summary

On November 27, 2016, Mr. [REDACTED] made this complaint to IAB by telephone, which the CCRB received on December 2, 2016, under log number 16-42030.

On November 26, 2016, at approximately 5:30 P.M., [REDACTED] was inside of his truck, which was parked in front of 1301 Inwood Avenue in the Bronx, when he was approached by PO [REDACTED] and PO Rafael Morales, both of the 44th Precinct, and stopped (**Allegations [REDACTED] B**). PO [REDACTED] and PO Morales began to ask Mr. [REDACTED] what he was doing in the area, as it was a high crime area for auto break-ins. Mr. [REDACTED] was confused, and while speaking to the officers PO Morales frisked and searched him (**Allegations C and D**). PO [REDACTED] continued to ask Mr. [REDACTED] questions, and entered his vehicle [REDACTED]. While inside the vehicle, PO [REDACTED] noticed a knife on the floor of the truck. PO [REDACTED] then exited the vehicle after locating its keys, and asked Mr. [REDACTED] where the registration for the vehicle was. After being told that it was in the center console of the vehicle, PO [REDACTED] re-entered the vehicle, found the registration, and then took the knife out of the vehicle. After speaking more with Mr. [REDACTED] PO [REDACTED] arrested him for possession of a gravity knife [REDACTED] and brought him to the 44th Precinct stationhouse to be processed. While bringing Mr. [REDACTED] out of the holding cell, PO [REDACTED] allegedly said, "You're a fucking criminal and you deserve what you get. If you want to be here all night, I can arrange that" [REDACTED]. Mr. [REDACTED] was then escorted out of the stationhouse and given a Desk Appearance Ticket. As a result of this incident, Mr. [REDACTED] was charged with criminal possession of a weapon in the fourth degree. PO Morales did not prepare a memo book entry for this incident (**Allegation H**), and neither PO Morales nor PO [REDACTED] prepared a Stop, Question and Frisk Report (UF-250) in regards to this incident (**Allegations [REDACTED] J**).

[REDACTED]
[REDACTED]

Video footage was obtained for this case, taken from security cameras on 1301 Inwood Avenue, which captured the incident.

SnagIt Video from IA#39

SnagIt Video from IA#38



201609960_20170208_1013_DM.mp4



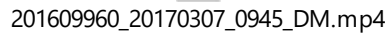
201609960_20170208_1011_DM.mp4

SnagIt Video from IA#140



201609960_20170306_1509_DM.mp4

SnagIt Video from IA#141



- [REDACTED]
[REDACTED]
- [REDACTED] [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED] [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] [REDACTED] [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- PO Rafael Morales has been a member of the NYPD for 9 years and has 9 other CCRB cases, involving 19 allegations and no substantiations. In CCRB 201203839, 201211813, 201310824, 201401872, and 201602335 PO Morales was cited for failure to prepare a memo book entry. In CCRB 201401872 and 201405143, two prior cases in which PO Morales allegedly frisked an individual but were closed as unsubstantiated, he had no recollection of the incident. In 201401872, PO Morales mentioned that he may have been doing administrative work at the stationhouse on the day of the incident. Otherwise, none of the allegations against PO Morales represent a pattern applicable to this case.

[REDACTED]

[REDACTED]

Findings and Recommendations

Explanation of Officer Identification

- [REDACTED]

Allegations Not Pleaded

- [REDACTED]

[REDACTED]

Allegation B – Abuse of Authority: In front of 1301 Inwood Avenue in the Bronx, Police Officer Rafael Morales stopped [REDACTED]

Allegation C – Abuse of Authority: In front of 1301 Inwood Avenue in the Bronx, Police Officer Rafael Morales frisked [REDACTED]

Mr. [REDACTED] said that after parking his vehicle in front of 1301 Inwood Avenue in the Bronx, he surveyed the street for a better parking spot. Finding none, he returned to the open driver's side door of his vehicle and was preparing to look through grocery bags inside of his truck when he saw through the passenger side window of the truck a police patrol car. After the police vehicle stopped, PO [REDACTED] and PO Morales approached Mr. [REDACTED] and PO [REDACTED] asked, "Is this your vehicle?" Mr. [REDACTED] responded that it was, and asked if there was a problem. PO [REDACTED] then

entered Mr. [REDACTED] vehicle and began searching it [REDACTED]. PO Morales then spoke to Mr. [REDACTED] next to his truck, and one of the two officers told Mr. [REDACTED] that many vehicles were being broken into in the neighborhood, giving no other reason as to why they were interacting with him (04 Board Review).

Mr. [REDACTED] told PO Morales, “I’m going to show you identification,” and reached for his wallet, which was inside his front right pants pocket. Upon doing this, PO Morales said, “Woah, Woah, put your hands up,” and frisked him, patting down his raised arms, his torso, legs, and pockets. While being frisked, PO Morales asked him questions, such as what his trailer was for, and where his friend was that he was visiting. Mr. [REDACTED] answered the questions, and said that he delivers heavy equipment and mentioned his friends’ address. PO Morales did not ask Mr. [REDACTED] about weapons while he was frisked. Mr. [REDACTED] recalled that officers did ask him about whether or not he had sharp objects, but only after they found the knife for which he was eventually arrested (04 Board Review).

Mr. [REDACTED] phone statement and in-person testimony were generally consistent, except that in his phone statement, Mr. [REDACTED] said that PO Morales asked him for his ID, and after the search, Mr. [REDACTED] took his ID out of his wallet and showed it to him (33 Board Review).

In the SnagIt of IA #38, at 00:00 PO [REDACTED] and PO Morales’ police vehicle can be seen at the top of the screen, and at 00:18 the police vehicle drives parallel to Mr. [REDACTED] vehicle. During the video, Mr. [REDACTED] is inside his truck moving his hands around the steering wheel and dashboard area (05 Board Review).

In the SnagIt of IA #39, PO [REDACTED] exits the police vehicle and at 00:06, Mr. [REDACTED] approaches PO [REDACTED] and then walks away. At 00:11, PO [REDACTED] points at Mr. [REDACTED] and walks near him. Upon doing this, Mr. [REDACTED] walks back to the truck and puts his arms up, placing them against the vehicle at approximately 00:16. At 00:15 PO Morales appears from the other side of Mr. [REDACTED] truck, and at 00:19 PO Morales approaches Mr. [REDACTED] from behind. At 00:26 in the video, PO Morales points to Mr. [REDACTED] truck, which he is facing, and immediately after, Mr. [REDACTED] places his hands against the truck. PO Morales begins to frisk Mr. [REDACTED] at 00:33 (06 Board Review).

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

PO Morales did not recall the incident. He said that he was working with PO [REDACTED] that day, but thought he may have been doing administrative work during the time of the incident. PO Morales did not have a memo book entry of the incident or of being in the stationhouse, doing administrative work. PO Morales was shown the video in the SnagIt of IA# 38 and SnagIt of IA# 39 from 00:00 to 2:02, but it did not refresh his memory of the incident. PO Morales did not recall stopping or frisking Mr. [REDACTED] (07 Board Review).

An individual may be stopped, defined as a seizure of that person which limits their freedom of movement, if officers have individualized reasonable suspicion that a felony or misdemeanor has been committed. A stop differs from mere questioning, which is the common-law right to inquire, that is activated by a founded suspicion that criminal activity is afoot and permits a somewhat

greater intrusion in that an officer is entitled to interfere with the individual to the extent necessary to gain explanatory information, but short of a forcible seizure. Additionally, “When, but only when, the police have constitutional grounds to insist on detaining a citizen, there is the companion right to frisk a detainee in order to protect the officers against the presence of weapons.” (People v. DeBour, 40 N.Y., N.Y.2d 210, 1976) (09 Board Review).

Location alone does not justify police intrusion against citizens who live, work, or travel in high crime areas. Behavior susceptible of an innocent interpretation does not generate founded or reasonable suspicion that criminal activity is afoot (People v. Hampton, 200 AD2d 466, 1994) (10 Board Review).

The reasonable suspicion to stop or temporarily detain a person requires more than a hunch, and must be based on specific and articulable facts (United States vs. Singleterry, 798 F.3d 55) (14 Board Review).

There is no right to frisk an individual who has been stopped when the only factors are his presence, and who turns away from officers and appears agitated (United States v. Jackson, 2015 U.S. Dist. LEXIS 98980 (S.D.N.Y. July 29, 2015)) (10 Board Review).

A proper frisk of an individual must be based on articulable facts as to why that individual is armed or a threat to an officer’s safety, and not mere conjectures or bare assertions. (Matter of Darryl C., 98 A.D.3d 69, 947 N.Y.S.2d 483, 2012) (36 Review)

PO [REDACTED] originally said that upon approaching Mr. [REDACTED] he said “Excuse me, sir,” which caused Mr. [REDACTED] to step back and toward his truck out of his own free will. However, when shown the video, PO [REDACTED] changed his testimony, and acknowledged that he gave Mr. [REDACTED] an order to step away from the truck. This order, coupled with the fact that the video shows Mr. [REDACTED] placing his hands against the vehicle, indicates that Mr. [REDACTED] perceived that he was temporarily detained and was not free to leave, and given the video, it is likely that PO [REDACTED] actually ordered Mr. [REDACTED] to put his hands against the vehicle. Finally, the fact that Mr. [REDACTED] is frisked at 00:33 in the SnagIt of IA #39 confirms that Mr. [REDACTED] was stopped, as once someone is frisked, they are assuredly not free to leave. Because of these facts, PO [REDACTED] and PO Morales’ initial interactions with Mr. [REDACTED] constituted a stop.

To stop Mr. [REDACTED] the officers needed reasonable suspicion that he was engaged in criminal behavior for it to be justified. PO [REDACTED] said that he decided to interact with Mr. [REDACTED] because the actions he took in his vehicle were suspicious, specifically Mr. [REDACTED] rummaging around the dashboard and floor area of the seat, and because the area was prone to auto break-in crimes. However, PO [REDACTED] did not notice anything particular about Mr. [REDACTED] vehicle that indicated it was involved in a crime. Observing someone rummaging around in a vehicle while in a high crime area in the absence of other factors such as seeing how Mr. [REDACTED] entered the vehicle or other indications of criminality, are insufficient factors to justify a stop. Therefore the investigation determined by a preponderance of the evidence that PO [REDACTED] and PO Morales did not have reasonable suspicion required to stop Mr. [REDACTED]

In regards to the frisk, the video undisputedly shows that Mr. [REDACTED] was frisked at 00:33, before the knife was found inside the vehicle at 1:31. PO Morales did not recall the incident and therefore did not provide any justification for the frisk. Additionally, PO [REDACTED] did not recall the frisk, and said that while he noticed a tool affixed to Mr. [REDACTED] belt, he did not feel physically threatened by Mr. [REDACTED]. Officers who approach a civilian in a high-crime area do not have reasonable suspicion to frisk that individual on that basis alone, even if he is agitated, whereas Mr. [REDACTED] was merely described as confused. Furthermore, the videos show Mr. [REDACTED] to be [REDACTED] and that he is not taking any actions that could reasonably give rise to suspicions of him being armed or a danger. Therefore, the investigation determined by a preponderance of the evidence that PO Morales did not have reasonable suspicion to frisk Mr. [REDACTED]. Therefore, it is recommended that Allegations [REDACTED] B, and C be *substantiated*.

Allegation D – Abuse of Authority: In front of 1301 Inwood Avenue in the Bronx, Police Officer Rafael Morales searched [REDACTED]

Mr. [REDACTED] said while being questioned and frisked by PO Morales, he was simultaneously searched. PO Morales entered Mr. [REDACTED] pockets, retrieving from his left jacket pocket an extra set of keys; from his front right pocket \$300 in cash that was separate from the wallet, and his cell phone from his left front pants pocket. Additionally, PO Morales retrieved Mr. [REDACTED] reading glasses from his shirt's front left breast pocket, unzipping Mr. [REDACTED] jacket to do so. At the time, Mr. [REDACTED] was wearing a lightweight nylon, black jacket that extended to his waist. Mr. [REDACTED] phone statement and in-person testimony were generally consistent (04 Board Review).

In the video contained in SnagIt of IA#39, at approximately 1:00 Mr. [REDACTED] turns to face PO Morales. At 1:03, PO Morales unzips Mr. [REDACTED] jacket, opening it at approximately 1:07. At both 1:13 and 1:25, PO Morales appears to use his left hand to enter Mr. [REDACTED] right pants or jacket pocket. At approximately 1:15, PO Morales also manipulates an area under Mr. [REDACTED] jacket, near his shirt's front left breast pocket. At approximately 5:03, PO [REDACTED] approaches Mr. [REDACTED] who turns around, and is put in handcuffs at 5:08 (06 Board Review).

PO Morales did not recall the incident, and did not recall frisking or searching Mr. [REDACTED] (07 Board Review).

PO [REDACTED] did not recall if Mr. [REDACTED] was frisked or searched prior to his arrest. Upon reviewing the footage, PO [REDACTED] said that at 1:01 in the SnagIt of IA #39 he was inside Mr. [REDACTED] vehicle inspecting the steering wheel area. PO [REDACTED] said he could hear voices outside the vehicle, but could not discern what PO Morales or Mr. [REDACTED] said. PO [REDACTED] also confirmed that the knife was found at approximately 1:31, and that Mr. [REDACTED] was only under arrest at 5:03 (08 Board Review).

Searching an individual requires probable cause that an object in that person's pocket is a weapon or evidence of a crime, and searching an individual after frisking him or her must be predicated on the belief that an object found during the frisk may reasonably be a weapon (People v. Hill, 171 AD2d 1017, 1991) (12 Board Review).

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Allegation H: Police Officer Rafael Morales failed to prepare a memo book entry as required.

As noted above, the investigation determined that PO Morales was involved in this incident. However PO Morales did not prepare a memo book entry for this incident as required by P.G. 212-08, which says that all officers below the rank of captain must make activity logs to include tasks performed, information pertinent to an assignment or observed/suspected violation of law, and action taken (31 Board Review). Therefore, it is recommended that he be cited for ***other misconduct***.

[REDACTED]

Allegation J: Police Officer Rafael Morales failed to prepare a stop and frisk report as required.

Neither PO [REDACTED] nor PO Morales prepared a Stop, Question and Frisk Report for Mr. [REDACTED]. P.G. 212-11 says that officers must prepare one for each person stopped, if that person was initially detained for investigation, even if it results in an arrest or summons (32 Board Review). Because PO [REDACTED] and PO Morales stopped Mr. [REDACTED] to conduct an investigation without preparing this report, it is recommended that they be cited for ***other misconduct***.

Squad: 3

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date